

Harishchandra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 January 2023 · WRIT - C No. - 38244 of 2022 · **Writ disposed of on same terms; billing dispute relegated to Clause 6.5.**

HEADNOTE

A writ disputing the correctness of a domestic electricity bill is disposed of on the same terms as the coordinate Bench in *Ramavtar Singh* (Writ-C No. 34797 of 2022): residual computation disputes are to be raised before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and if such an objection is filed, no coercive measures are to be taken until it is decided by a reasoned speaking order.

FACTUAL SUMMARY

Harishchandra challenged the correctness of a domestic electricity bill issued for account number 781703230615 at Sub-Division EDSD-II Ghiror, District Mainpuri. Counsel for both sides agreed that the facts matched Writ Petition No. 34797 of 2022 (*Ramavtar Singh v. State of U.P.*), decided on 9 December 2022. That order recorded a Consumer Forum direction to reissue bills from 2013 at average rate without surcharge or interest, a subsequent revised bill, and no recovery then outstanding, and sent residual computation disputes to the Executive Engineer under Clause 6.5.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill — Clause 6.5 representation

HOLDING

Following a coordinate Bench in *Ramavtar Singh*, a dispute as to the correctness or computation of an electricity bill is to be raised before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ is disposed of on those terms; if the consumer files a Clause 6.5 objection, no coercive measures shall be taken until the objection is decided by a reasoned speaking order with due intimation. ¶ 1-2

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench declined merits interference with the disputed domestic bill and disposed of the writ on the same terms as *Ramavtar Singh*, relegating residual computation disputes to Clause 6.5. Lead authorities: *Ramavtar Singh v. State of U.P.* [Writ-C No. 34797 of 2022]. ¶ 1-2

clause-6.5-statutory-remedy-disputed-bill The incorporated *Ramavtar Singh* directions treat Clause 6.5 as the statutory forum for a remaining dispute over computation of the electricity bill. Lead authorities: *Ramavtar Singh v. State of U.P.* [Writ-C No. 34797 of 2022]. ¶ 1-2

billing-objection-to-executive-engineer-under-6.5 The consumer may file a Clause 6.5 objection before the Executive Engineer; until that objection is disposed of by a reasoned speaking order, no coercive measures are to be taken. Lead authorities: *Ramavtar Singh v. State of U.P.* [Writ-C No. 34797 of 2022]. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND COMPUTATION OF THE DISPUTED ELECTRICITY BILL

Left to the Executive Engineer under Clause 6.5 on the same terms as *Ramavtar Singh*. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ramavtar Singh v. State of U.P.</i>			court	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
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Writ Petition No. 34797
of 2022 (Allahabad,
09.12.2022)

SCJ-3011 · Harishchandra v. State of U.P. · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.